

observations, a reduction of hours is appropriate and the court approves a total of 41.1 hours. The court awards defendant's attorneys' fees as follows:

- 38.5 hours at an hourly rate of \$425 (counsel Bailey)
- 2.6 hours at an hourly rate of \$295 (counsel Chim)

As to costs, defendant seeks costs of \$143.83 for the litigation of the special motion to strike and an additional \$69.82 for costs for this motion. A careful review of the invoices provided as Exhibit A to the Bailey declaration support costs of \$128.55 for the initial motion. A careful review of the invoices provided as Exhibit A to the supplemental Bailey declaration support costs of \$69.82 for costs for this motion. The court approves costs in the amount of \$213.65.

Based on the foregoing, the motion is granted in part. Defendant is awarded attorneys' fees of \$17,129.50 and costs in the amount of \$213.65 for a total of \$17,343.15.

Motion to Consolidate

The motion to consolidate is dropped from the calendar as no moving papers were filed with the court.

15. S-CV-0056109 Bradley, Jerel v. Union Pacific Railroad Co.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to First Amended Complaint

Defendants demur to the seventh cause of action in plaintiff's first amended complaint ("FAC") on the grounds that it fails to state a valid cause of action. (Code Civ. Proc., § 430.10 (e).) Plaintiff opposes the demurrer. A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) The court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Plaintiff's seventh cause of action alleges defamation. The elements of defamation are: (1) a publication, (2) that is false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or cause special damage. (*Bishop v. The Bishop's School* (2022) 86 Cal.App.5th 893, 909, 910.) Here, a careful review of the FAC reveals it sufficiently alleges all elements to support plaintiff's claim for defamation, including publication. (*See Kelly v. General Telephone Co.* (1982) 136 Cal.App.3d 278, 284; *Agarwal v. Johnson* (1979) 25 Cal.3d 932, 944.) Under Civil Code section 46(3), false statements

which tend directly to injure a person in respect to their profession, trade or business constitute slander *per se*.

Defendants assert the statute of limitations bars plaintiff's claim. (Code Civ. Proc. §§ 430.10, subd. (e), 340(c).) To sustain a demurrer on this ground, the running of the statute of limitations must appear "clearly and affirmatively" from the face of the complaint. It is not enough that the complaint *might* be time barred. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Stueve Bros. Farms, LLC v. Berger Kahn* (2013) 222 Cal.App.4th 303, 321.) Here, the FAC adequately alleges republication within a year prior to the filing of the complaint. It does not appear clearly and affirmatively from the face of the complaint that the claim is barred.

Based on the foregoing, the court overrules defendants' demurrer to the seventh cause of action for defamation. Defendants shall file their answer by May 8, 2026.

16. S-CV-0056213 Mora, Michael F v. Cavanaugh, Shannon Glen

Demurrer to the Complaint

Defendants Shannon Glen Cavanaugh aka S. Glen Cavanaugh and Cavalry Automotive Ventures, Inc. demur to the first and third causes of action for breach of contract and fraud, respectively, for failure to allege facts sufficient to state a cause of action pursuant to Code of Civil Procedure section 430.10(e). Plaintiff opposes the motion.

Defendants' and plaintiff's request the court take judicial notice of the complaint filed September 16, 2025 is granted.

Plaintiff's objections to portions of the Jensen declaration are overruled.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Defendant Cavanaugh contends the breach of contract claim fails because the complaint does not adequately allege facts supporting plaintiff's performance or defendant's breach. A careful review of the complaint and Exhibit 1 thereto, however, reveals the complaint sufficiently alleges facts supporting the existence of a contract between the parties, plaintiff's performance or excuse for nonperformance, defendant's breach, and damages. The demurrer is overruled on this basis.